

all other auxiliary requests from the outset for no apparent reason; it did not even examine whether the amendments could have overcome all the objections validly raised up to that point without giving rise to any new ones – which might have rendered them admissible. No abuse of procedure or delaying tactic on the part of the appellant was apparent from the file.

5.1.5 Amending a non-opposed sub-claim

In T.711/04, the board observed that, in accordance with the principles set out in G.9/91 (OJ 1993, 408), the subject-matter of a non-opposed claim was not the subject of an "opposition" within the meaning of Art. 101 and Art. 102 EPC 1973 (Art. 101 EPC combines Art. 101(1) and (2) with Art. 102(1) to (3) EPC 1973; R. 82 EPC) or "proceedings" within the meaning Art. 114 and Art. 115 EPC. The Enlarged Board of Appeal had also found, however, that this basic principle was not directly applicable where the only subject-matter outside the specified scope of the opposition were dependent claims which had to be regarded as implicitly covered. This exception for sub-claims was, the board found, entirely justified by the fact that a sub-claim that was combined with a main claim and then requested as a new main claim had to be examined as to its form and substance in order to ascertain whether or not the combination of the claims had extended the protection sought. This also showed that the theoretical legal construct underlying the decision in G.9/91, i.e. that there were no proceedings within the meaning of Art. 114 or Art. 115 EPC, was untenable in the case in hand. A patent proprietor wishing to limit the patent to the subject-matter of a non-opposed sub-claim had to combine that sub-claim with the corresponding main claim. The non-opposed sub-claim was inevitably amended as a result, even if the amendment might appear to be a mere technicality. Noting that R. 57a EPC 1973 (R. 80 EPC) had entered into force after the date of the decision in G.9/91, the board added that amending non-opposed sub-claims remained permissible under that provision too.

5.1.6 Applicability of Rule 43(2) EPC in opposition proceedings

R. 43(2) EPC (R. 29(2) EPC 1973) provides that a European patent application may not contain more than one independent claim in the same category unless they involve (i) a plurality of interrelated products, (ii) different uses of a product or apparatus or (iii) alternative solutions to a particular problem, where it is inappropriate to cover these alternatives by a single claim.

The scope and potential applicability of R. 43(2) EPC in opposition proceedings was addressed in T.263/05 (OJ 2008, 329). Having considered the purpose and legislative history of the rule, the board concluded that it could not apply across the board to all amendments made during opposition proceedings. If it did, it would be impermissible to make any amendment introducing non-unitary claims, something which was not only permissible in opposition proceedings but also clearly appropriate given that the patent proprietor was no longer able to file a divisional application. To conclude that R. 43(2) EPC applied across the board in opposition proceedings would have watered down the decision in G.1/91 (OJ 1992, 253). R. 43(2) EPC could not be applied in opposition proceedings to prohibit the amendment of a patent as granted where it would be unreasonable to demand

that the amended claims comply with it. This was the case where, otherwise, R. 43(2) EPC would force the patent proprietor to abandon potentially valid subject-matter already contained in the claims as granted. The board could not envisage any circumstances in opposition proceedings in which R. 43(2) EPC would be of any application because, once it had been established that an amendment to the claims was necessary and appropriate having regard to grounds for opposition, it would inevitably be unreasonable to impose the additional requirement that the amendment complied with the purely administrative provisions of R. 43(2) EPC.

In T. 830/11 the board confirmed that the condition of conciseness of Art. 84 EPC 1973 and the provisions of R. 29(2) EPC 1973 (R. 43(2) EPC) had to be construed in opposition proceedings in the light of the finding in G. 1/91, point 4.2 of the Reasons. R. 29(2) EPC 1973 (R. 43(2) EPC) should not constitute an obstacle to defending the patent in all its branches (cf. T. 263/05 and T. 1416/04). The board emphasised that it was not questioning the general applicability of Art. 84 EPC 1973 as to conciseness or of R. 29(2) EPC 1973 (R. 43(2) EPC) in opposition proceedings. It merely considered that these norms did not apply to sets of claims whose subject-matter was already claimed in the granted version of the patent.

According to the board in T. 1416/04, a request containing a plurality of independent product claims might be allowable under R. 57a EPC 1973 (R. 80 EPC) in order to provide an amendment of a granted set of claims containing only one independent product claim, if the amended independent claims arose from the deletion of previous claims. With regard to the form of the claims, the board did not consider it relevant for the case before it to decide whether R. 43(2) EPC applied to opposition cases or not: even if R. 43(2) EPC should be considered applicable, the subject-matter in the granted claims could not appropriately be covered by one independent claim so that the requirements of this rule would have been met anyway. On the filing of new independent claims, see also chapter IV.C.5.1.2 c) (ii).

5.1.7 Applicability of Rule 137(5) EPC in opposition proceedings

The board in T. 735/12 held that an opponent's objection under R. 137(5) EPC that a claim included features taken only from the description and therefore unsearched was inoperative if only because R. 137 EPC governed solely amendments to a European patent application and was therefore not applicable in opposition (appeal) proceedings. See also T. 1542/14.

5.1.8 Removal of error (in claim) in opposition proceedings – Rule 139 EPC

According to T. 657/11, in opposition proceedings mistakes or errors concerning the claims, the description or the drawings of the patent as granted may be removed either by an amendment occasioned by a ground for opposition under Art. 100 EPC or, as far as the mistakes or errors concern texts or drawings which remain unamended, under certain conditions by way of a correction pursuant to R. 139 EPC.

The claims according to the main request before the opposition division and the appellant's initial request in the appeal proceedings differed from the granted claims only in that the wording "NF permeate" in the last process step of claim 6 was replaced by "NF concentrate". The board had communicated that R. 140 EPC was not available to correct the text of a granted patent (G 1/10, OJ 2013, 194). However, the claims according to the appellant's final (sole) request were, as compared to the claims as granted, **amended beyond the mere removal of an error**, namely by limiting them to those granted as (process) claims 6 to 11. Hence the basis for the decision on the appeal (and, thereby, on the opposition) was no longer that for the decision to grant, which would definitely lose its effect and be replaced by a new decision. In such a situation any (further) amendment of the claims, even if aimed at removing an obvious mistake in the claims as granted, did not constitute a correction of an error in a decision of the EPO within the meaning of R. 140 EPC. As pointed out in G 1/10, it was always open to a patent proprietor to seek to amend his patent during opposition or limitation proceedings and such amendment could remove a perceived error. However, an amendment with the (sole) aim of removing a mistake or error in the claims, but also in the description and drawings of the patent as granted, could not be said to be "occasioned by a ground for opposition under Art. 100" (R. 80 EPC). It followed that such mistakes or errors – here the expression "[nanofiltration] permeate" – in the unamended part of the text could only be removed by a correction pursuant to R. 139 EPC, which provision and the specific requirements defined therein applied independently of R. 80 EPC (see also T 556/13 and T 1966/17; distinguished in T 21/16). The proposed correction was in accordance with those requirements.

In T 488/13 the board considered that a printing error, which could not be imputed to the patentee, should normally be correctable at any time. In the case in hand the proposed amendment effectively corrected such a printing error, so that the amendment was appropriate and necessary.

5.2. Scope of examination of amendments

5.2.1 Scope of examination not limited to grounds raised pursuant to R. 76(2)(c) EPC

Amendments of the claims or other parts of a patent in the course of opposition proceedings are to be examined as to their compatibility with the requirements of the EPC (Art. 101(3) EPC). When amendments are made to a patent, opposition divisions (as well as the boards of appeal) have the power to deal with grounds and issues arising from those amendments even if they were not specifically raised by an opponent pursuant to R. 76(2)(c) EPC (T 227/88, OJ 1990, 292; G 9/91, OJ 1993, 408, G 10/91, OJ 1993, 420, point 19 of the Reasons, respectively; T 472/88; T 922/94; T 1437/15; see also T 459/09; see also chapter IV.C.5.2.2 below; for the extent of the power to examine amended claims for compliance with Art. 84 EPC, see G 3/14, OJ 2015, A102, and chapter IV.C.5.2.2 below).

Where amended claims were introduced in the opposition proceedings there could be no objection to the opponent's submitting new citations and new arguments against the new claims that challenged inventive step for the first time (T 623/93). The examination by the

opposition division of a new submission justified in this way was in keeping with G 9/91 (OJ 1993, 408, point 19 of the Reasons).

In T 1437/15 the board pointed out that the grounds for opposition specified in Art. 100 EPC concerned only the maintenance of a granted patent (Art. 101(1) and (2) EPC). By contrast, where a patent was amended during opposition proceedings, it could be maintained as so amended only if, taking into consideration the amendments made, it met the requirements of the EPC (Art. 101(3) EPC).

In T 693/98 the board dealt with the question as to whether, on the proper interpretation of Art. 102(3) EPC 1973 (Art. 101(3)(a) EPC), the fact that an amendment to the claims has been made in opposition proceedings opens the possibility for an opponent to raise an objection under Art. 123(2) EPC to all the amendments to the claims including those made before the patent was granted, even if such objection was not originally raised and substantiated as a ground for opposition. Citing G 10/91 (OJ 1993, 420, point 19 of the Reasons) the board concluded that only the amendments made during opposition or appeal proceedings, not those made before grant, must be examined for compliance with the requirements of the EPC (see also T 301/87, OJ 1990, 335). Cited in T 2696/16.

The introduction of a feature into an independent claim, which feature was present in the claims and in the description as granted, could not be considered as an amendment which legitimated the admittance of Art. 100(b) EPC as a fresh ground of opposition, which required that a European patent as a whole had to disclose the invention in a manner sufficiently clear and complete for it to be carried out by a person skilled in the art (T 1053/05; cf. also T 739/08 and T 565/13).

In T 2155/17 the board considered that the new added-matter objection in question related to the amendment and not to the combination of features in the claims as granted, and therefore did not constitute a fresh ground in the sense of G 10/91 (OJ 1993, 420).

In T 895/18 the board cited G 9/91 (OJ 1993, 408, point 19 of the Reasons) and concluded that the EPC required that, in the case of amendments in opposition or appeal proceedings, a full examination had to be undertaken of the amendments and therefore in particular of the **claims resulting from the amendments**. The board rejected a "parallelism" between the treatment of unclear features and of added matter, as suggested by the appellant (proprietor), as this disregarded the fact that, in contrast to added matter, lack of clarity was not one of the grounds for opposition according to Art. 100 EPC.

In T 571/19, the board observed that Art. 101(3)(a) EPC required that new claim requests be examined for compliance with the EPC requirements. This did not extend to clarity where granted claims had been combined (G 3/14 – see also chapter IV.C.5.2.2) or to the requirement of unity of invention (G 1/91, headnote), but compliance with Art. 123(3) EPC always had to be established (see G 9/91 and G 10/91, point 19 of the Reasons; T 648/96; T 1302/06). However, it was not apparent from the opposition division's decision why it had found the claims of the auxiliary request on which the decision was based to be in keeping with Art. 123(3) EPC, and so the decision was insufficiently reasoned for the purposes of R. 111(2) EPC. The board considered it irrelevant that Art. 100(c) EPC had

not been cited as a ground for opposition and that the opponent had not raised any objection under Art. 123(2) EPC; the amended claims should nevertheless have been examined for compliance with Art. 123(3) EPC.

5.2.2 Extent of power to examine amended claims for compliance with Article 84 EPC

The extent to which the opposition division or a board of appeal may examine clarity for the purpose of Art. 101(3) EPC was the subject of questions put to the Enlarged Board of Appeal in referral G 3/14 (OJ 2015, A102). In the case underlying the referral (T 373/12, OJ 2014, A115) claim 1 of auxiliary request 1, submitted during opposition proceedings, consisted of a combination of the features of claim 1 as granted and of dependent claim 3 as granted.

As a preliminary point, the Enlarged Board identified the following main types of case: amendments which encompass a literal insertion of elements of dependent claims as granted into an independent claim (type A); these include amendments in which a dependent claim contains within it alternative embodiments, one of which is then combined with its independent claim (Type A(i)), and amendments in which a feature is introduced into an independent claim from a dependent claim, being a feature which was previously connected with other features of that dependent claim from which it is now disconnected (Type A(ii)); furthermore, amendments which encompass a literal insertion of complete dependent claims as granted into an independent claim (Type B, this being the case with which the referring board was confronted).

The Enlarged Board first considered its previous jurisprudence, i.e. G 1/91 (OJ 1992, 253), G 9/91 (OJ 1993, 408) and G 10/91 (OJ 1993, 420). Citing the statement in point 19 of the Reasons in G 9/91 and G 10/91 that "[...] in case of amendments of the claims or other parts of a patent in the course of opposition or appeal proceedings, such amendments are to be fully examined as to their compatibility with the requirements of the EPC", it noted that if the Enlarged Board had at the time considered that the opposition division and the boards of appeal were given wide powers to examine amended claims, it would have said so. Therefore, the term "amendments" had to be understood in the sense that the subject-matter to be examined must have some direct nexus with the amendment.

The Enlarged Board identified three main lines in the jurisprudence of the technical boards: the "conventional" approach, based on the test whether the amendment introduces any contravention of Art. 84 EPC, and the principle that Art. 101(3) EPC does not allow objections to be based upon Art. 84 EPC if they do not arise out of the amendments made (see T 301/87 and T 227/88, applied in many further cases, see e.g. T 381/02, T 1855/07, T 367/96 of 3 December 1997 and T 326/02). Secondly, there was a wider interpretation, according to which a lack of clarity could be examined if the amendment "highlights and focuses attention" on a previously existing ambiguity (T 472/88; see also T 681/00 and T 1484/07). The third line of jurisprudence was considered "diverging". According to T 1459/05 (see also T 1440/08 and T 656/07), clarity may be examined on a case-by-case basis as a matter of discretion when the added feature is the only feature that distinguishes the subject-matter of the claim from the prior art. T 459/09 was the most far-reaching of